



CHAPTER cciv.

An Act to authorise the construction of tramways in Torquay and for other purposes. [15th August 1904.] A.D. 1904.

WHEREAS the construction of the tramways which are hereinafter described will be of public and local advantage :

And whereas the Dolter Electric Traction Limited (in this Act called "the Company") are willing at their own expense to construct the said tramways and it is expedient that powers be conferred upon them for that purpose :

And whereas it is expedient to empower the Company to widen certain of the streets and roads in which the tramways are authorised to be constructed and to confer upon them the other powers contained in this Act :

And whereas the purposes of this Act cannot be attained without the authority of Parliament :

And whereas plans and sections showing the lines and levels of the works authorised by this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county of Devon and are in this Act respectively referred to as the deposited plans sections and book of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PRELIMINARY.

1. This Act may be cited as the Torquay Tramways Act 1904. Short title.

[Price 2s. 6d.]

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Incorporation of Acts.

2. The following Acts and parts of Acts so far as they are applicable for the purposes and are not inconsistent with the provisions of this Act are hereby incorporated with and form part of this Act (namely) :—

The Lands Clauses Acts :

Section 3 (Interpretation of terms) and Parts II. and III. of the Tramways Act 1870.

Interpretation.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise requires—

“The tramways” and “the undertaking” mean respectively the tramways and the undertaking authorised by this Act ;

“Mechanical power” includes steam electrical and every other motive power not being animal power ;

“Engine” includes motor ;

“The tribunal” means the jury arbitrators umpire or other authority to whom any question of disputed compensation under this Act is referred ;

“The corporation” means the mayor aldermen and burgesses of the borough of Torquay ;

“The borough” means the borough of Torquay ;

“Daily penalty” means a penalty for each day on which any offence is continued by a person after conviction.

CONSTRUCTION OF TRAMWAYS.

Power to make tramways.

4. Subject to the provisions of this Act the Company may make form lay down work use and maintain the tramways hereinafter described in the lines and according to the levels shown on the deposited plans and sections and in all respects in accordance with those plans and sections with all proper rails plates junctions turn-tables turn-outs crossings passing-places posts poles brackets wires waiting-rooms stables carriage-houses sheds depôts buildings engines works and conveniences connected therewith Provided that nothing in this Act shall authorise any interference with electric lines and works of any undertakers under the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the former Act apply except in accordance with and subject to the provisions of that section.

The tramways hereinbefore referred to and authorised by this Act will be situate in the borough and are— A.D. 1904.

Tramway No. 1 (6 furlongs and 0·30 chain or thereabouts in length whereof 2 furlongs 5·50 chains will be double line and 3 furlongs 4·80 chains will be single line) commencing in Union Street at a point 0·40 chain south-east of St. Mary Church Road passing along Castle Circus Union Street and Newton Road and terminating in the last-mentioned road at a point 3·20 chains north-west of Avenue Road;

Tramway No. 2 (6 furlongs and 2·20 chains or thereabouts in length whereof 3 furlongs 8·80 chains will be double line and 2 furlongs 3·40 chains will be single line) commencing in Union Street by a junction with Tramway No. 1 at the commencement thereof passing along Union Street Fleet Street the Strand and Victoria Parade and terminating in Victoria Parade at a Point 0·20 chain north of South Pier;

Tramway No. 3 (1 mile 3 furlongs and 7·30 chains or thereabouts in length whereof 1 mile 1 furlong 2·70 chains will be double line and 2 furlongs 4·60 chains will be single line) commencing by a junction with Tramway No. 2 in Union Street at a point 1·60 chains south-east of St. Mary Church Road passing along Castle Circus St. Mary Church Road Lymington Road Orchard Road Forest Road St. Mary Church Road Manor Road and Babbacombe Road and terminating in the last-named road by a junction with Tramway No. 7 at a point 0·80 chain south-east of Manor Road;

Tramway No. 3a (single line 1·20 chains or thereabouts in length) commencing in Manor Road by a junction with Tramway No. 3 at a point 0·60 chain south-west of Fore Street passing into Fore Street and terminating therein at a point 0·60 chain north-west of Manor Road;

Tramway No. 4 (7 furlongs and 6·00 chains or thereabouts in length whereof 4 furlongs 4·50 chains will be double line and 3 furlongs 1·50 chains will be single line) commencing in Union Street by a junction with Tramway No. 2 at the commencement thereof passing along Castle Circus Tor Hill Road Tor Church Road Lucius Street Falkland Road Rathmore Road and Torbay Road and terminating in the last named road at a point 3·00 chains north-east of Rathmore Road;

Tramway No. 4a (double line 1·90 chains or thereabouts in length) commencing in Tor Hill Road by a junction with

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Tramway No. 4 at a point 0·50 chain south-west of Union Street passing along Castle Circus and St. Mary Church Road and terminating in the last-named road by a junction with Tramway No. 3 at a point 1·30 chains north-east of Union Street;

Tramway No. 5 (double line 6 furlongs and 3·70 chains or thereabouts in length) commencing in Torbay Road by a junction with Tramway No. 4 at the termination thereof passing along Torbay Road Carey Parade and the Strand and terminating in the Strand by a junction with Tramway No. 2 at a point 0·25 chain north-west of the intersection of Vaughan Parade and the Strand;

Tramway No. 5a (double line 2·00 chains or thereabouts in length) commencing in Carey Parade by a junction with Tramway No. 5 at a point 1·40 chains west of the Strand passing into the Strand and terminating therein by a junction with Tramway No. 2 at a point 0·40 chain north-east of Carey Parade;

Tramway No. 6 (1 mile and 6·20 chains or thereabouts in length whereof 5 furlongs 8·60 chains will be double line and 2 furlongs 7·60 chains will be single line) commencing in Forest Road by a junction with Tramway No. 3 at a point 0·10 chain east of Studley Road passing into and along Studley Road Shirburn Road Hatfield Road Ellacombe Church Road Hoxton Road Princes Road Victoria Road Market Street and Union Street and terminating in the last-mentioned street by a junction with Tramway No. 2 at a point 0·50 chain south-east of Market Street;

Tramway No. 6a (double line 0·90 chain or thereabouts in length) commencing in Market Street by a junction with Tramway No. 6 at a point 0·60 chain north-east of Union Street passing into Union Street and terminating therein by a junction with Tramway No. 2 at a point 0·50 chain north-west of Market Street;

Tramway No. 7 (2 miles 2 furlongs and 4·20 chains or thereabouts in length whereof 7 furlongs 2·90 chains will be double line and 1 mile 3 furlongs 1·30 chains will be single line) commencing in Victoria Parade by a junction with Tramway No. 2 at a point 1·50 chains south-west of the Strand passing along Victoria Parade Torwood Street Babbacombe Road and Fore Street and terminating in the last-named street at the intersection of Torquay Road and Fore Street;

Tramway No. 7a (double line 2·75 chains or thereabouts in length) commencing in Victoria Parade by a junction with Tramway No. 7 at a point 1·60 chains north-west of the Strand passing into the Strand and terminating therein by a junction with Tramway No. 2 at a point 1·50 chains north-west of Torwood Street; A.D. 1904.

Tramway No. 8 (double line 1 furlong and 7·10 chains or thereabouts in length) commencing in Union Street by a junction with Tramway No. 1 at a point 0·40 chain north-west of South Street passing into and along Brunswick Square Upton Road New Road and Lymington Road and terminating in the last-named road by a junction with Tramway No. 3 at a point 1·00 chain north of New Road;

Tramway No. 8a (double line 7·20 chains or thereabouts in length) commencing in Upton Road by a junction with Tramway No. 8 at a point 3·40 chains north-west of the intersection of South Street and Union Street passing along Upton Road Brunswick Square and Union Street and terminating in the last-named street by a junction with Tramway No. 1 at a point 1·10 chains north-west of Laburnam Street;

Tramway No. 9 (1 furlong and 4·30 chains or thereabouts in length whereof 4·00 chains will be double line and 1 furlong 0·30 chain will be single line) commencing in Orchard Road by a junction with Tramway No. 3 at a point 0·40 chain north-east of Lymington Road passing into Lymington Road and terminating therein at a point 0·35 chain north of the intersection of Lymington Road and West Hill Road;

Tramway No. 9a (double line 3·15 chains or thereabouts in length) commencing in Lymington Road by a junction with Tramway No. 9 at a point 2·60 chains north-west of Orchard Road passing into Lymington Road and terminating therein by a junction with Tramway No. 3 at a point 2·00 chains south-west of Orchard Road;

Tramway No. 10 (double line 1 furlong and 1·20 chains or thereabouts in length) commencing in Torbay Road by a junction with Tramway No. 5 at a point 0·25 chain east of the intersection of Vaughan Road and Carey Parade passing along Vaughan Road Vaughan Parade and the Strand and terminating in the Strand by a junction with Tramway No. 2 at a point 1·80 chains south-east of Vaughan Parade;

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Tramway No. 10a (double line 2·25 chains or thereabouts in length) commencing in Vaughan Parade by a junction with Tramway No. 10 at a point 1·70 chains south-west of the Strand passing into the Strand and terminating therein by a junction with Tramway No. 2 at a point 0·25 chain north-west of Vaughan Parade.

Gauge of
tramways.

5. The tramways shall be constructed on a gauge of three feet six inches Provided always that so much of section 34 of the Tramways Act 1870 as limits the extent of the carriage used on any tramway beyond the edge of the wheels of such carriage shall not apply to carriages used on the tramways but no carriage or engine used on the tramways shall exceed six feet six inches in width or such greater width as may from time to time be prescribed by the Board of Trade.

Rails of
tramways.

6. The rails of the tramways shall be such as the Board of Trade may approve.

Plan of pro-
posed mode
of con-
struction.

7. In addition to the requirements of section 26 of the Tramways Act 1870 the Company shall at the same time as they give notice to the road authority of their intention to open or break up any road for the purpose of constructing laying down and renewing any of the tramways lay before the Board of Trade a plan showing the proposed mode of constructing laying down and renewing such tramways and a statement of the materials intended to be used therein and the Company shall not commence the construction laying down and renewal of any of the tramways or part of any of the tramways respectively until such plan and statement have been approved by the Board of Trade and after such approval the works shall be executed in accordance in all respects with such plan and statement and under the superintendence and to the reasonable satisfaction of the surveyor of the road authority as provided by section 26 of the said Act.

Penalty for
not main-
taining rails
and roads.

8.—(1) The Company shall at all times maintain and keep in good condition and repair and so as not to be a danger or annoyance to the ordinary traffic the rails of the tramways and the sub-structure upon which the same rest and if the Company at any time fail to comply with this provision or with the provisions of section 28 of the Tramways Act 1870 they shall be subject to a penalty not exceeding five pounds and to a daily penalty not exceeding five pounds.

(2) In case it is represented in writing to the Board of Trade by the road authority of any district in which the tramways or any

portion thereof are or is situate or by twenty inhabitant ratepayers of such district that the Company have made default in complying with the provisions in this section contained or with any of the requirements of section 28 of the Tramways Act 1870 the Board of Trade may if they think fit direct an inspection by an officer to be appointed by the said Board and if such officer report that the default mentioned in such representation has been proved to his satisfaction then and in every such case a copy of such report certified by a secretary or an assistant secretary of the Board of Trade may be adduced as evidence of such default and of the liability of the Company to such penalty or penalties in respect thereof as is or are by this section imposed.

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9. If and whenever after the passing of this Act any road authority alters the level of any road along or across which any part of the tramway is laid or authorised to be laid the Company may and shall from time to time alter or (as the case may be) lay their rails so that the uppermost surface thereof shall be on a level with the surface of the road as altered.

Tramways
to be kept
on level of
surface of
road.

10. Where in any road in which a double line of tramway is laid there shall be less width between the outside of the footpath on either side of the road and the nearest rail of the tramway than nine feet six inches the Company shall if and where required by the Board of Trade construct a cross-over or cross-overs connecting the one tramway with the other and by the means of such cross-over or cross-overs the traffic shall when necessary be diverted from one tramway to the other.

Cross-overs
to be con-
structed in
certain cases.

11.—(1) Notwithstanding anything contained in this Act the Company may with the consent of the Board of Trade—

Power to
make addi-
tional cross-
overs and to
double tram-
way lines.

(a) Make maintain alter and remove such cross-overs passing-places sidings junctions and other works in addition to those particularly specified in and authorised by this Act as they find necessary or convenient for the efficient working of the tramways or for providing access to any warehouses stables or carriage-houses or works of the Company;

(b) Lay down double lines in lieu of single or interlacing lines or single lines in lieu of double or interlacing lines or interlacing lines in lieu of double or single lines on any of the tramways either when constructing the tramways or at any time thereafter and construct or take up and reconstruct any of the tramways in such position in the road in which it is authorised to be constructed as they may think fit.

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(2) Provided that if in the construction of any works under this section any rail is intended to be so laid that for a distance of thirty feet or upwards a less space than nine feet six inches would intervene between it and the outside of the footpath on either side of the road the Company shall not less than one month before commencing the works give notice in writing to every owner and occupier of houses shops and warehouses abutting on the place where such less space would intervene and such rail shall not be so laid (except with the consent of the Board of Trade) if the owners or occupiers of one-third of such houses shops or warehouses by writing under their hands addressed and delivered to the Company within three weeks after receiving the notice from the Company express their objection thereto.

Modification
of section 26
of Tramways
Act 1870.

12. The consent of the road authority under sub-section (4) of section 26 of the Tramways Act 1870 to the opening or breaking up of a greater length than one hundred yards of any road shall not be unreasonably withheld and any question which may arise under this section between the Company and any road authority shall be deemed to be a difference within the meaning of section 33 of the said Act.

Application
of road
materials ex-
cavated in
construction
of works.

13. Any paving metalling or material excavated by the Company in the construction of the tramways from any road under the jurisdiction or control of any road authority may be applied by the Company so far as may be necessary in or towards the re-instatement of the road and the maintenance for six months after completion of any of the tramways within the district of such road authority of so much of the roadway on either side of such tramways as the Company are by section 28 of the Tramways Act 1870 required to maintain and the Company shall if so required deliver the surplus paving metalling or material not used or required to be retained for the purposes aforesaid to the surveyor of the road authority or to such person or persons as he may appoint to receive the same. Provided that if within seven days after the setting aside of the surplus arising from the excavation of any such paving metalling or material and notice duly given such surplus is not removed by such surveyor or by some other person named by him for that purpose such surplus paving metalling or material shall absolutely vest in and belong to the Company and may be dealt with removed and disposed of by them in such manner as they may think fit. Any difference between the Company and any road authority or surveyor or other person with reference to any of the matters aforesaid shall be settled by an

arbitrator to be nominated by the Board of Trade on the application of either party. A.D. 1904.

14. Every sanitary authority shall at all times have free access to and communication with all their sewers and drains and power to lay lateral and private drains to communicate therewith without the consent or concurrence of the Company and the provisions contained in sections 32 and 33 of the Tramways Act 1870 shall be applicable in the case of any sewer or private drain of or under the control of the said authority as if the same were a pipe for the supply of gas or water. Sanitary authority to have access to sewers.

15. Where any tramway is constructed or intended to be constructed or re-constructed over any manhole or entrance into any sewer of the corporation or so close to such manhole or entrance as to make the use thereof dangerous the Company shall at their own expense if required by the corporation alter the position of such manhole or entrance in such manner as may be reasonably necessary and approved by the corporation or the corporation may at their own option at the reasonable expense of the Company make such alterations in the position of such manhole or entrance. If the corporation intend to execute such works themselves they shall commence execute and complete the same with all reasonable despatch. If any question shall arise as to whether any requirement or failure to give approval under this section is reasonable that question shall be referred to arbitration the arbitrator being nominated by the Board of Trade on the application of either party. As to man-holes.

16. Where by reason of the execution of any work affecting the surface or soil of any road along which any of the tramways is laid it is in the opinion of the Company necessary or expedient temporarily to remove or discontinue the use of such tramway or any part thereof the Company may construct in the same or any adjacent road and maintain so long as occasion may require a temporary tramway or temporary tramways in lieu of the tramway or part of a tramway so removed or discontinued. Temporary tramways may be made where necessary.

17. The provisions of section 30 of the Tramways Act 1870 shall extend and apply to the mains pipes tubes wires and apparatus of the corporation as if the corporation were a company within the meaning of those provisions. As to alteration of water mains &c.

18. The tramways shall not be opened for public traffic until they have been inspected and certified to be fit for such traffic by the Board of Trade. Inspection by Board of Trade.

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Period for
completion
of works.

19. The tramways shall be completed within six years from the passing of this Act and on the expiration of that period the powers by this Act granted to the Company for executing the same or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

As to re-
moval of
snow &c.

20. If the Company at any time find it necessary or desirable to remove snow or other matter impeding the traffic on the tramways the Company shall at their own cost remove the snow or other matter to the side of the road but so as not to impede or obstruct the ordinary traffic on the road and the Company shall not use salt or other unsuitable material for thawing the snow on any road. Provided that any snow or other matter removed by the Company from the tramways shall not be allowed to remain on the road but shall be at once taken away by the Company.

MOTIVE POWER.

Motive
power.

21. The carriages used on the tramways may subject to the following provisions be moved by animal power or by mechanical power (that is to say) :—

- (1) The mechanical power shall not be used except with the consent of and according to a system approved by the Board of Trade :
- (2) The Board of Trade shall make regulations (in this Act referred to as "the Board of Trade regulations") for securing to the public all reasonable protection against danger arising from the use under this Act of mechanical power on the tramways and for regulating the use of electrical power :
- (3) The Company or any person using any mechanical power on the tramways contrary to the provisions of this Act or of the Board of Trade regulations shall for every such offence be liable to a penalty not exceeding ten pounds and also in the case of a continuing offence to a daily penalty not exceeding five pounds :
- (4) The Board of Trade if they are of opinion—
 - (a) That the Company or such person have or has made default in complying with the provisions of this Act or of the Board of Trade regulations whether a penalty in respect of such non-compliance has or has not been recovered ; or
 - (b) That the use of mechanical power as authorised under this Act is a danger to the passengers or the public ;

may by order either direct the Company or such person to cease to use such mechanical power or permit the same to be continued only subject to such conditions as the Board of Trade may impose and the Company or such person shall comply with every such order. In every such case the Board of Trade shall make a special report to Parliament notifying the making of such order: A.D. 1904.

- (5) The carriages shall only be moved by animal power in case of emergency or by the consent in writing of the corporation and subject to such terms conditions and stipulations as to them may seem fit.

22. The following provisions shall apply to the use of electrical power under this Act unless such power is entirely contained in and carried along with the carriages:—

Special provisions as to use of electrical power.

- (1) The Company shall employ either insulated returns or uninsulated metallic returns of low resistance:
- (2) The Company shall take all reasonable precautions in constructing placing and maintaining their electric lines and circuits and other works of all descriptions and also in working their undertaking so as as not injuriously to affect by fusion or electrolytic action any gas or water pipes or other metallic pipes structures or substances or to interfere with the working of any wire line or apparatus from time to time used for the purpose of transmitting electrical power or of telegraphic telephonic or electric signalling communication or the currents in such wire line or apparatus:
- (3) The electrical power shall be used only in accordance with the Board of Trade regulations and in such regulations provision shall be made for preventing fusion or injurious electrolytic action of or on gas or water pipes or other metallic pipes structures or substances and for minimising as far as is reasonably practicable injurious interference with the electric wires lines and apparatus of other parties and the currents therein whether such lines do or do not use the earth as a return:
- (4) The Company shall be deemed to take all reasonable precautions against interference with the working of any wire line or apparatus if and so long as they adopt and employ at the option of the Company either such insulated returns or such uninsulated metallic returns

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of low resistance and such other means of preventing injurious interference with the electric wires lines and apparatus of other parties and the currents therein as may be prescribed by the Board of Trade regulations and in prescribing such means the Board shall have regard to the expense involved and to the effect thereof upon the commercial prospects of the undertaking :

- (5) At the expiration of two years from the passing of this Act the provisions of this section shall not operate to give any right of action in respect of injurious interference with any electric wire line or apparatus or the currents therein unless in the construction erection maintaining and working of such wire line and apparatus all reasonable precautions including the use of an insulated return have been taken to prevent injurious interference therewith and with the currents therein by or from other electric currents :
- (6) If any difference arises between the Company and any other party with respect to anything hereinbefore in this section contained such difference shall unless the parties otherwise agree be determined by the Board of Trade or at the option of the Board by an arbitrator to be appointed by the Board and the costs of such determination shall be in the discretion of the Board or of the arbitrator as the case may be :
- (7) The expression "Company" in this section shall include licencees and any person owning working or running carriages over any tramway of the Company.

Alteration
of telegraph
lines of
Postmaster-
General.

23. Notwithstanding anything in this Act contained if any of the works authorised to be executed by this Act involves or is likely to involve any alteration of any telegraphic line belonging to or used by the Postmaster-General the provisions of section 7 of the Telegraph Act 1878 shall apply (instead of the provisions of section 30 of the Tramways Act 1870) to any such alteration.

For protec-
tion of Post
Office tele-
graph lines.

24. In the event of any tramways of the Company being worked by electricity the following provisions shall have effect :—

- (1)—(a) The Company shall construct their electric lines and other works of all descriptions and shall work their undertaking in all respects with due regard to the telegraphic lines from time to time used or intended to be used by His Majesty's Postmaster-General and the

currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of their undertaking to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein ;

(b) Any difference which arises between the Postmaster-General and the Company as to compliance with this subsection shall be determined by arbitration :

(2) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Company of their electric lines and works or by the working of the undertaking of the Company the Company shall pay the expense of all such alterations in the telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection :

(3)—(a) Before any electric line is laid down or any act or work for working the tramways by electricity is done within ten yards of any part of a telegraphic line of the Postmaster-General (other than repairs) the Company or their agents not more than twenty-eight nor less than fourteen days before commencing the work shall give written notice to the Postmaster-General specifying the course of the line and the nature of the work including the gauge of any wire and the Company and their agents shall conform with such reasonable requirements (either general or special) as may from time to time be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-General from being injuriously affected by the said act or work ;

(b) Any difference which arises between the Postmaster-General and the Company as to any requirement so made shall be determined by arbitration :

(4) If any telegraphic line of the Postmaster-General situate within one mile of any portion of the works of the Company is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of the Company's works or to the working of their undertaking the engineer-in-chief of the Post Office or any person appointed in writing by him may

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at all times when electrical energy is being generated by the Company enter any of the Company's works for the purpose of inspecting the Company's plant and the working of the same and the Company shall in the presence of such engineer-in-chief or such appointed person as aforesaid make any electrical tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the Company pursuant to the Board of Trade regulations :

- (5) In the event of any contravention of or wilful non-compliance with this section by the Company or their agents the Company or their agents (as the case may be) shall be liable to a fine not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not exceeding fifty pounds for every day on which such interruption continues :
- (6) Provided that nothing in this section shall subject the Company or their agents to a fine under this section if they satisfy the court having cognizance of the case that the immediate doing of any act or execution of any work in respect of which the penalty is claimed was required to avoid an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraph office nearest to the place where the act or work was done a notice of the execution thereof stating the reason for doing or executing the same without previous notice :
- (7) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously affected by an act or work if telegraphic communication by means of such line is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work :
- (8) For the purposes of this section and subject as therein provided sections 2 10 11 and 12 of the Telegraph Act 1878 shall be deemed to be incorporated with this Act :
- (9) The expression "electric line" has the same meaning in this section as in the Electric Lighting Act 1882 :

- (10) Any question or difference arising under this section which is directed to be determined by arbitration shall be determined by an arbitrator appointed by the Board of Trade on the application of either party whose decision shall be final and sections 30 to 32 both inclusive of the Regulation of Railways Act 1868 shall apply in like manner as if the Company or their agents were a company within the meaning of that Act: A.D. 1904.
- (11) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right to proceed against the Company by indictment action or otherwise in relation to any of the matters aforesaid:
- (12) In this section the expression "the Company" includes any person owning working or running carriages on any of the tramways of the Company.

25.—(1) For the purpose of working any of the tramways by mechanical power the Company may erect construct maintain and use stations for generating transforming using and distributing electrical energy together with engines works buildings machinery and apparatus and may place construct erect lay down make and maintain on above or below the surface of any streets or roads including the footpaths thereof such posts standards brackets electric conductors wires apparatus conduits contact boxes studs cables tubes and openings as may be requisite or expedient for the convenient working or user of the tramways or for the transmission of electricity to such tramways or to any part thereof and may supply electrical energy from any generating station. Works for mechanical power.

(2) Subject to the provisions of this Act and of the Board of Trade regulations the position and design of all posts standards and brackets and their several attachments shall be such as the Company and the local and road authority may agree or as in case of difference between them may be determined by the Board of Trade or at the option of that Board by an arbitrator appointed by them.

26. The provisions of sections 26 to 33 and 41 of the Tramways Act 1870 (except so much of section 28 as relates to the repair of the road between and on each side of the rails of a tramway) shall apply as if all posts tubes pipes wires and other apparatus used or to be used by the Company for the purposes of mechanical power were parts of the tramway. Apparatus used for mechanical power to be deemed part of tramway.

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Attachment
of brackets
to buildings.

27. The Company may with the consent of the owner of any building attach to that building such brackets wires and apparatus as may be required for the working of the tramways by mechanical power :

Provided that—

- (1) Where in the opinion of the Company any consent under this section is unreasonably refused they may appeal to a petty sessional court who shall have power having regard to the character of the building and to the other circumstances of the case to allow the attachment subject to such terms as to compensation or rent and otherwise as they may think reasonable or to disallow the same and may determine by which of the parties the costs of the appeal are to be paid ;
- (2) Any consent of an owner and any order of a petty sessional court under this section shall not have effect after that owner ceases to be in possession of the building but any attachments fixed under the provisions of this section shall not be removed until the expiration of three months after any subsequent owner shall have given to the Company notice in writing requiring the attachments to be removed Where such notice is given the preceding provisions of this section shall apply and the petty sessional court shall have the same powers as under proviso (1) ;
- (3) The owner may require the Company to temporarily remove the attachments where necessary during any reconstruction or repair of the building.

For the purpose of this section any occupier of a building whose tenancy exceeds one year unexpired and in the case of any other tenancy the person receiving the rack rent shall be deemed to be the owner.

Byelaws.

28.—(1) Subject to the provisions of this Act the Board of Trade may make byelaws with regard to any of the tramways upon which mechanical power may be used for all or any of the following purposes (that is to say) :—

- (a) For regulating the use of any bell whistle or other warning apparatus fixed to the engine or carriages ;
- (b) For regulating the emission of smoke or steam from engines used on the tramways ;

- (c) For providing that engines and carriages shall be brought to a stand at the intersection of cross streets and at such places and in such cases of horses being frightened or of impending danger as the Board of Trade may deem proper for securing safety ;
- (d) For regulating the entrance to exit from and accommodation in the carriages used on the tramways and the protection of passengers from the machinery of any engines used for drawing or propelling such carriages ;
- (e) For providing for the due publicity of all byelaws and Board of Trade regulations in force for the time being in relation to the tramways by exhibition of the same in conspicuous places on the carriages and elsewhere.

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(2) Any person offending against or committing a breach of any of the byelaws made by the Board of Trade under the authority of this Act shall be liable to a penalty not exceeding forty shillings.

29. The provisions of the Tramways Act 1870 relating to the making of byelaws by the local authority with respect to the rate of speed to be observed in travelling on the tramways shall not authorise the local authority to make any byelaws sanctioning a higher rate of speed than that authorised by the Board of Trade regulations but the byelaws of the local authority may restrict the rate of speed to a lower rate than that so authorised.

Amendment
of Tramways
Act 1870 as
to byelaws
by local
authority.

FARES RATES AND CHARGES.

30.—(1) The Company may demand and take for every passenger travelling upon the tramways including every expense incidental to the conveyance a fare not exceeding one penny per mile and in computing the said fare the fraction of a mile shall be deemed a mile but in no case shall the Company be bound to charge a less sum than twopence.

Passengers'
fares.

(2) Provided that the Company may appoint stages not less than a mile in length upon the tramways and may demand and take for every passenger travelling upon the tramways including every expense incidental to the conveyance a fare not exceeding one penny per stage and for this purpose the fraction of a stage shall be deemed a stage.

31. Every passenger travelling upon the tramways may take with him his personal luggage not exceeding twenty-eight pounds in weight without any charge being made for the carriage thereof

Passengers'
luggage.

A.D. 1904. — Provided that such luggage is carried by hand and does not occupy any part of a seat nor is of a form or description to annoy or inconvenience other passengers.

As to fares
on Sundays
or holidays.

32. The Company shall not take or demand on Sunday or any public holiday any higher fares or charges than those levied by them on ordinary week days.

Restrictions
not to apply
to special
carriages.

33. The restrictions contained in this Act as to fares for passengers shall not extend to any special carriages run upon the tramways or to any special service of carriages on extraordinary occasions in respect of which the Company may demand and take such fares as they shall think fit but shall apply only to the ordinary carriages or service of carriages appointed from time to time for the conveyance of passengers on the tramways.

Cheap fares
for labouring
classes.

34.—(1) The Company at all times after the opening of the tramways for public traffic shall and they are hereby required to run a proper and sufficient service of carriages for artizans mechanics and daily labourers each way every morning and every evening (Sundays Christmas Day and Good Friday always excepted) at such hours not being later than eight o'clock in the morning or earlier than five o'clock in the evening respectively as may be most convenient for such workmen going to and returning from their work at fares not exceeding one halfpenny for every mile or fraction of that distance On Saturdays the Company in lieu of running such carriages after five o'clock in the evening shall run the same at such hours between noon and two o'clock in the afternoon as may be most convenient for the said purposes.

(2) If complaint is made to the Board of Trade that such proper and sufficient service is not provided the Board after considering the circumstances of the locality may by order direct the Company to provide such service as may appear to the Board to be reasonable.

(3) The Company shall be liable to a penalty not exceeding five pounds for every day during which they fail to comply with any order under this section.

(4) The liability of the Company under any claim to compensation for injury or otherwise in respect of each passenger travelling by such carriages shall be limited to a sum not exceeding one hundred pounds.

Rates for
goods.

35. The Company may demand and take in respect of animals goods and parcels conveyed by them on the tramways

including every expense incidental to the conveyance any rates or charges not exceeding those specified in the first schedule to this Act subject to the regulations in that behalf therein contained. A.D. 1904.

36. The Company shall not be bound unless they think fit to carry passengers' luggage exceeding the weight in that behalf mentioned nor any parcels goods or animals. Company not bound to carry goods.

37. The fares rates and charges authorised by this Act shall be paid to such persons and at such places upon or near to the tramways and in such manner and under such regulations as the Company may by notice to be annexed to the list of fares and charges appoint. Payment of fares.

38. If at any time after three years from the opening for public traffic of the tramways or any portion thereof or after three years from the date of any order made in pursuance of this section in respect of the tramways or any portion thereof it is represented in writing to the Board of Trade by the corporation or by twenty inhabitant ratepayers of the borough or by the Company that under the circumstances then existing all or any of the fares rates or charges demanded and taken in respect of the traffic on the tramways or on such portion should be revised the Board of Trade may (if they think fit) direct an inquiry by a referee to be appointed by the said Board in accordance with the provisions of the Tramways Act 1870 and if the referee reports that it has been proved to his satisfaction that all or any of the fares rates or charges should be revised the said Board may subject to the maximum fares rates and charges authorised by this Act by order in writing alter modify reduce or increase all or any of the fares rates or charges to be taken in respect of the tramways or on any portion thereof and thenceforth such order shall be observed until the same is revoked or modified by an order of the Board of Trade made in pursuance of this section. Periodical revision of fares rates and charges.

ROAD WIDENINGS LANDS &c.

39. Subject to the provisions of this Act the Company may make and maintain in the lines and according to the levels shown on the deposited plans and sections the road widenings and other works hereinafter mentioned with all proper approaches embankments retaining walls works and conveniences connected therewith or incident thereto. Power to make street improvements.

The road widenings hereinbefore referred to and authorised by this Act will be situate in the borough and are—

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Road Widening No. 1 A widening of St. Mary Church Road on the north side from Union Street to Lymington Road ;

Road Widening No. 2 A widening of Rathmore Road on the east side from a point 80 yards from Falkland Road measured in a southerly direction to Torbay Road ;

Road Widening No. 3 A widening of Shirburn Road on the east side from a point 27 yards north of Bronshill Road to Bronshill Road ;

Road Widening No. 4 A widening of Ellacombe Church Road on the north side from a point 10 yards from Victoria Road measured in a south-easterly direction to a point 60 yards from Highbury Road measured in a westerly direction ;

Road Widening No. 5 A widening of Babbacombe Road on the north-west side from Stitchill to a point 95 yards from Woodfield Road measured in a south-westerly direction ;

Road Widening No. 6 A widening of Babbacombe Road on the west side from Asheldon Road to a point 60 yards from Asheldon Road measured in a northerly direction ;

Road Widening No. 6A A widening of Babbacombe Road on the west side from a point 210 yards to a point 330 yards both measured from Asheldon Road in a northerly direction ;

Road Widening No. 7 A widening of Babbacombe Road on the north-east side from a point 180 yards to a point 70 yards both measured from Manor Road in a south-easterly direction.

Limits of deviation.

40. In the construction of the road widenings authorised by this Act the Company may deviate from the lines thereof as shown on the deposited plans to any extent not exceeding the limits of lateral deviation shown on those plans and from the levels thereof as shown on the deposited sections to any extent not exceeding two feet either upwards or downwards.

Subsidiary works.

41. Subject to the provisions of this Act and within the limits of deviation shown on the deposited plans the Company may in connection with the works authorised by this Act and for the purposes thereof make junctions and communications with any existing streets which may be intersected or interfered with by or be contiguous to such works and may make diversions widenings or alterations of the lines or levels of any existing streets for the purpose of connecting the same with such works or of crossing under or over the same or otherwise and may alter divert or stop up all or any part of any drain sewer channel or

gas or water main or pipe wire or apparatus within the said limits the Company providing a proper substitute before interrupting the flow of sewage in any drain or sewer or of any gas or water in any main or pipe or of electricity in any wire or apparatus and making compensation for any damage done by them in the execution of the powers of this section. A.D. 1904.

42. The Company may with the consent of the local and road authority increase the roadway of any street in which any of the tramways are to be laid by reducing the width of the footpath on each or either side of such street Provided that the width of no footpath shall be reduced under this section to less than six feet. Company may reduce footpath.

43. The streets and roads widened or altered in pursuance of this Act shall (subject to the provisions of the Tramways Act 1870 as to the repair by the Company of part of the roads in which tramways are laid) continue vested in and repairable by and under the control and management in all respects of the respective authorities having the control and management of the existing streets and roads. As to repair of altered streets.

44. Subject to the provisions of this Act the Company may enter on take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as they may require for the construction of the road widenings and other works authorised by this Act and for the provision of space for the erection of buildings adjoining or near to any street or road widened or improved in pursuance of the powers of this Act or for the purposes of car sheds or depôts. Power to take lands.

45. If any work authorised by this Act involves the removal or alteration of any post office letter box the Company shall not alter or remove such box but shall give notice to the Postmaster General of the removal or alteration required and it shall be lawful for the Postmaster General to remove or alter the box as he may think fit and the Company shall pay to the Postmaster General all expenses incurred by him of and incidental to such removal or alteration. As to removal of post office letter boxes.

46. If there be any omission mis-statement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Company after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two Correction of errors &c. in deposited plans and book of reference.

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justices acting for the borough for the correction thereof and if it appear to the justices that the omission mis-statement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is mis-stated or wrongly described and such certificate shall be deposited with the clerk of the peace for the county of Devon and a duplicate thereof shall also be deposited with the town clerk of the borough and such certificate and duplicate respectively shall be kept by such clerk of the peace and town clerk respectively with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Company to take the lands and execute the works in accordance with such certificate.

Period for compulsory purchase of lands.

47. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of five years from the passing of this Act.

Owners may be required to sell parts only of certain lands and buildings.

48.—(1) And whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Company of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Company and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect:—

(a) The owner of and persons interested in any of the properties whereof the whole or part is described or referred to in the second schedule to this Act and whereof a portion only is required for the purposes of the Company or each or any of them are hereinafter included in the term "the owner" and the said properties are hereinafter referred to as "the scheduled properties":

(b) If for twenty-one days after service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Company that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Company such portion only without the Company being obliged or compellable to purchase the whole the Company paying for the portion so taken

and making compensation for any damage sustained by the owner by severance or otherwise : A.D. 1904.

- (c) If within such twenty-one days the owner shall by notice in writing to the Company allege that such portion cannot be so severed the tribunal shall in addition to the other questions required to be determined by them determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Company have compulsory powers of purchase) can be so severed :
- (d) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Company the portion which the tribunal shall have determined to be so severable without the Company being obliged or compellable to purchase the whole the Company paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal :
- (e) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in their absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the arbitration or inquiry shall be borne and paid by the owner :
- (f) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Company may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice :
- (g) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed

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—

from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Company in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

(2) The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

(3) The provisions of this section shall be stated in or endorsed upon every notice given thereunder to sell and convey any premises.

Persons
under dis-
ability may
grant ease-
ments &c.

49. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rent-charges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

MISCELLANEOUS.

Deposit
money not
to be repaid
until line
opened.

50. Whereas pursuant to the standing orders of both Houses of Parliament and to the Parliamentary Deposits Act 1846 Treasury Bills for the sum of five thousand pounds equivalent to the sum of four thousand eight hundred and forty-seven pounds three shillings and sixpence cash such last-mentioned sum being more than five per centum upon the amount of the estimate in respect of the tramways have been deposited with the Paymaster General for and on behalf of the supreme Court in respect of the application to Parliament for this Act (which sum is referred to in this Act as "the deposit fund") Be it enacted that notwithstanding anything contained in the said Act the deposit fund shall not be paid or

A.D. 1904.

transferred to or on the application of the person or persons or the majority of the persons named in the warrant or order issued in pursuance of the said Act or the survivors or survivor of them (which persons survivors or survivor are or is in this Act referred to as "the depositors") unless the Company shall previously to the expiration of the period limited by this Act for completion of the tramways open the same for the public conveyance of passengers and if the Company shall make default in so opening the tramways the deposit fund shall be applicable and shall be applied as provided by the next following section. Provided that if within such period as aforesaid the Company open any portion of the tramways for the public conveyance of passengers then on the production of a certificate of the Board of Trade specifying the length of the portion of the tramways opened as aforesaid and the portion of the deposit fund which bears to the whole of the deposit fund the same proportion as the length of the tramways so opened bears to the entire length of the tramways hereby authorised the High Court shall on the application of the depositors order the portion of the deposit fund specified in the certificate to be paid or transferred to them or as they shall direct and the certificate of the Board of Trade shall be sufficient evidence of the facts therein certified and it shall not be necessary to produce any certificate of this Act having passed anything in the above-mentioned Act to the contrary notwithstanding.

51. If the Company do not previously to the expiration of the period limited for the completion of the tramways complete the same and open them for the public conveyance of passengers then and in every such case the deposit fund or so much thereof as shall not have been paid to the depositors shall be applicable and after due notice in the London Gazette shall be applied towards compensating any landowners or other persons whose property has been interfered with or otherwise rendered less valuable by the commencement construction or abandonment of the tramways or any portion thereof or who have been subjected to injury or loss in consequence of the compulsory powers of taking property conferred upon the Company by this Act and also in compensating all road authorities for the expense incurred by them in taking up any tramway or materials connected therewith placed by the Company in or on any road vested in or maintainable by such road authorities respectively and in making good all damage caused to such roads by the construction or abandonment of such tramway and shall be distributed in satisfaction of such compensation as aforesaid in such manner and in such proportions as to the High Court may seem fit. And if no such compensation is payable or if a portion

Application
of deposit.

A.D. 1904. of the deposit fund has been found sufficient to satisfy all just claims in respect of such compensation then the deposit fund or such portion thereof as may not be required as aforesaid shall if a receiver has been appointed or the Company is insolvent and has been ordered to be wound up or the undertaking has been abandoned be paid or transferred to such receiver or to the liquidator or liquidators of the Company or be applied in the discretion of the court as part of the assets of the Company for the benefit of the creditors thereof and subject to such application shall be repaid or retransferred to the depositors. Provided that until the deposit fund has been repaid to the depositors or has become otherwise applicable as hereinbefore mentioned any interest or dividends accruing thereon shall as and when the same become payable be paid to or on application of the depositors.

Deposit fund to be retained for one year after opening of certain tramways.

52. Notwithstanding anything contained in the section of this Act whereof the marginal note is "Deposit money not to be repaid until line opened" no part of the deposit fund as defined in that section shall be paid or transferred to or on the application of the depositors until the expiration of twelve months from the date of the opening for public traffic of Tramways Nos. 1 2 3 3A 6 6A 9 and 9A authorised by this Act unless the corporation shall by writing under the hand of their town clerk consent to the said deposit fund or any part thereof being paid or transferred as aforesaid at an earlier date.

Waiting rooms.

53. The Company may erect provide and fit up shelters or waiting rooms for persons intending to use any of their tramways near to the routes of the tramways either upon land to be acquired for the purpose or (with the consent of the local and road authority) upon the highways.

As to purchase of undertaking.

54. Section 43 of the Tramways Act 1870 shall in its application to the undertaking and to the Company in relation thereto be modified as follows (that is to say):—

- (1) The period of ten years shall be substituted for the period of twenty-one years mentioned in the said section:
- (2) The terms upon which the Company may be required to sell the undertaking shall be the terms of paying the fair value thereof as a going concern but without any allowance for compulsory purchase:

Provided that this section shall not apply to a purchase of the undertaking by the local authority in pursuance of an order made under section 41 or section 42 of the Tramways Act 1870.

55. The Company and the corporation may enter into and carry into effect agreements for or with respect to the postponement of the date at which the right of the corporation to purchase the undertaking or any part thereof shall be exercised for such periods not exceeding a period of forty-two years from the date of the agreement and on such terms and conditions as may be agreed between the Company and the corporation and when any such agreement has been entered into the powers of purchase of the undertaking or of the part thereof referred to in the agreement shall be exercised only in accordance with the provisions thereof.

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Agreements
as to purchase of
tramways by
Corporation.

56. Nothing contained in this Act or in the enactments incorporated therewith shall prevent the Company borrowing money on the security of mortgages of the undertaking or shall make the consent or approval of the Board of Trade or of the corporation necessary to the validity or effect of any such mortgage. Provided that every mortgage of the undertaking shall be deemed to comprise all purchase money which may be paid to the Company in the event of a compulsory sale of the undertaking or any part thereof to the corporation under section 43 of the Tramways Act 1870 as modified by this Act and that any mortgage granted by the Company shall not be a charge upon the undertaking or any part thereof in the event of the undertaking being purchased by the corporation under the said section as so modified and that every mortgage deed granted by the Company shall be endorsed with notice to that effect.

Saving as to
powers of
borrowing on
mortgage.

57.—(1) The Company may enter into and carry into effect agreements with any person empowered (whether expressly or otherwise) to enter into such agreements and being the owner or lessee of any tramway which can be worked with any of the tramways of the Company (each of whom is in this section referred to as “the owning authority”) with respect to the following purposes or any of them and all matters incidental or necessary thereto (that is to say):—

Working
agreements.

(a) The working running over use management occupation and maintenance by any of the contracting parties of the undertakings and tramways of or leased to the other or others of them or any part or parts thereof respectively:

(b) The supply to any of the contracting parties of motive power by the other or others of them:

(c) The interchange accommodation and forwarding of carriages passengers and traffic coming from or destined

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for the respective undertakings of or leased to or worked by the contracting parties or any of them:

- (d) The fixing payment collection and apportionment of tolls rates charges or other receipts arising upon the respective tramways.

(2) For the purposes and during the continuance of any such agreement the Company or the owning authority working running over managing occupying or maintaining any tramways shall in accordance with and to the extent provided by such agreement have and may exercise in respect of the tramways worked run over managed occupied or maintained by them all such and the like powers rights and remedies for the taking collection and recovery of fares rates and charges and otherwise howsoever as are by or under the Acts or Orders respectively relating to such tramways conferred upon the Company or the owning authority.

(3) No electrical energy shall be supplied or shall continue to be supplied under the provisions of this section in any district in which any local authority company or person shall be supplying such energy under statutory authority without the consent in writing of such local authority company or person.

(4) For the purposes of this section the expression "tramways" shall include light railways.

For protec-
tion of
corporation.

58. Except so far as may be otherwise agreed between the corporation and the Company the following provisions shall apply and have effect (that is to say):—

- (1) The Company shall as soon as reasonably possible after the passing of this Act commence and continue the construction of Tramways Nos. 1 2 3 3A 6 6A 9 and 9A authorised by this Act and open the same for public traffic before the expiration of eighteen months from the passing of this Act and as and when Tramways Nos. 1 2 3 3A 6 6A 9 and 9A shall have been completed the Company shall commence and continue the construction of one or other of the Tramways Nos. 4 and 4A or 5 and 5A whichever of the said tramways shall ultimately be required by the corporation to be constructed and as and when Tramways Nos. 4 and 4A or 5 and 5A shall have been completed the Company shall if called upon by the corporation commence and continue the construction of Tramways Nos. 7 and 7A Provided that in the event of the construction of Tramways Nos. 5 and 5A the same shall not except

with the consent of the corporation be constructed on the overhead or trolley system of electric traction : A.D. 1904.

- (2) In the construction of Tramways Nos. 4 and 7 respectively the Company shall execute the Road Widening No. 2 and the Road Widening No. 5 authorised by this Act to such extent as the corporation may reasonably require having regard to the present widths of the streets and to the traffic thereon Provided that—

(a) The corporation shall without consideration give up such land as may be required for the said Road Widening No. 2 ;

(b) The corporation shall contribute to the Company such sum as the Company may require not exceeding three hundred pounds towards the cost of acquiring the necessary land for and the construction of Road Widening No. 5 such sum to be paid on the completion of Tramway No. 7 ;

(c) The corporation shall without consideration give up their interest in the land at Torwood Mount required for the said Road Widening No. 5 ;

(d) No deed of conveyance shall be required in respect of the lands given up by the corporation in pursuance of this subsection ;

(e) All lands acquired by the Company for the widening of streets in pursuance of this subsection whether from the corporation or otherwise shall be thrown into the streets for the purposes of the said widenings and shall be thereafter dedicated to the use of the public as public highways :

- (3) The Company shall pave the roads upon which any of the tramways are laid to the extent provided by the Tramways Act 1870 with good and substantial wood paving tarred macadam or other material which the corporation may reasonably require and they shall in all respects thereafter maintain the same (subject to the provisions of the said Act) in accordance with the reasonable requirements of the corporation :

- (4) The Company shall provide all such electrically propelled carriages and other rolling stock utensils and appliances as may be requisite for efficiently working the tramways and for maintaining thereon such full and sufficient

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service of carriages as the corporation may from time to time reasonably require :

- (5) All works of or connected with the construction or maintenance of the tramways or the street widenings aforesaid or any works contingent upon or connected with the said tramways and street widenings together with all conveniences connected therewith shall be at all times executed and maintained except as herein otherwise provided to the reasonable satisfaction of the corporation and in respect of all matters connected with the works or maintenance hereinbefore mentioned the Company shall at all times comply with the reasonable requirements of the corporation :
- (6) The Company shall not use or permit the use of their ordinary passenger carriages for the conveyance of animals or goods or for traffic other than the conveyance of passengers with their luggage not exceeding twenty-eight pounds in weight and small parcels not exceeding fifty-six pounds in weight and subject to the limitations aforesaid the tools of workmen conveyed in workmen's carriages :
- (7) The Company shall not place or exhibit within or upon the carriages or upon any poles standards or other portions of the tramways without the consent of the corporation in writing any advertisement or placard of any kind or nature whatsoever except such as relate to the working of or the traffic on the tramways but such consent shall not be unreasonably withheld :
- (8) The Company shall in the construction of the tramways make all requisite and necessary provisions for propelling carriages placed upon the tramways by electrical power according to their surface contact system of electrical traction known as "the Dolter surface contact system" subject in all respects to the regulations of the Board of Trade for the time being relating thereto and they shall at all times keep the same in an effective working condition but in the event of the said surface contact system of traction at any time becoming or proving and continuing for a reasonable time not exceeding one month to be from any cause whatsoever unsatisfactory ineffective or inefficient then the Company shall if required by the corporation forthwith

remove the same and shall lay down and efficiently reconstruct such other system of electrical equipment as shall be satisfactory effective and efficient and to the reasonable approval of the corporation : A.D. 1904.

- (9)—(a) The Company shall at all times take and use from the generating station of the corporation and the corporation shall supply all electrical energy which shall be required for the purpose of efficiently and in accordance with this Act working the tramways and the Company shall pay to the corporation all sums due by them for electrical energy supplied by the corporation and measured at the generating station aforesaid according to the following rate or scale of charges (that is to say) :—

(i) For the first six years of working the tramways—

For the first one hundred thousand Board of Trade units per annum at the rate of twopence per unit;

For the next fifty thousand units in the same year in excess of the first one hundred thousand at the rate of one penny and three farthings per unit;

For any additional quantity in excess of one hundred and fifty thousand units in the same year at the rate of one penny halfpenny per unit;

With a minimum annual payment to the corporation of one thousand two hundred pounds;

(ii) At the expiration of such period of six years the charges for such electrical energy as aforesaid shall be such sum as may be agreed upon between the Company and the corporation or in default of agreement such sum as shall be fixed by arbitration;

- (b) In the event of the fair market price of coal used by the Corporation at their generating station exceeding the price of twenty shillings per ton from any circumstance whatsoever then the Company shall pay to the corporation in addition to the prices aforesaid such additional price per unit as may be agreed

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between the Company and the corporation or in default of agreement as shall be determined by arbitration ;

(c) Payment for electrical energy or materials supplied and for any work done by the corporation shall be made monthly not later than twenty-one days after the end of each month ;

(d) The corporation shall supply all such electrical energy at such voltage as the Company may require not being less than five hundred nor more than five hundred and fifty volts at the generating station and of such description of current as may reasonably be required by the Company for the purpose of the said tramways ;

(e) The Company shall be entitled to a maximum supply of two hundred and fifty kilowatts but reasonable notice in writing shall be given to the corporation of any electrical energy required by the Company over and above the said maximum of two hundred and fifty kilowatts for the purposes of the said tramways ;

(f) In the event of any breach other than a trivial breach by the corporation of their obligations contained in this subsection (except arising from fire lightning tempest strikes of workmen or any other circumstances over which the corporation have no control but failure of generating plant shall not be considered as beyond the control of the corporation) the Company shall be at liberty by notice in writing to the corporation to forthwith determine the provisions of this subsection without prejudice to the rights of the Company in respect of any such breach as aforesaid :

(10) In the event of the corporation purchasing the tramways and plant under section 43 of the Tramways Act 1870 as modified by this Act they shall be at liberty to use the Dolter system or other system on which the tramways are being worked without any payment for licences or payments for future user of patent rights or fees in respect of such user :

(11) The Company shall construct their principal car shed on land forming part of the property of the corporation adjacent to the generating station of the corporation and the corporation shall grant a lease of such portion of the land as may be required for such purpose not

exceeding one acre for such period as the Corporation are empowered to grant at a rental which shall be calculated at the rate of twenty pounds per acre and upon such other terms as may be agreed or as failing agreement shall be determined by arbitration and the Company shall accept the said lease accordingly and in the event of the corporation purchasing the tramways or of the Company ceasing from any cause whatsoever to carry on and work the tramways such lease shall be surrendered or assigned as the corporation may direct :

A.D. 1904.

- (12) The Company shall not run carriages upon the tramways on Sundays except between the hours of twelve noon and ten o'clock in the evening without the consent in writing of the corporation under the hand of their town clerk :
- (13) The Company shall not sell the undertaking without the express consent in writing of the corporation but such consent shall not be unreasonably withheld :
- (14) The Company and the corporation may by agreement under seal alter or modify any of the provisions of this section :
- (15) Any difference or dispute between the corporation and the Company of whatsoever nature in connection with or arising out of the provisions of this section shall be submitted to the sole arbitration of an arbitrator to be agreed or failing agreement to be appointed by the Board of Trade upon the application in writing of either the corporation or the Company.

59. If any person wilfully does or causes to be done with respect to any apparatus used for or in connection with the working of any of the tramways anything which is calculated to obstruct or interfere with the working of such tramways or to cause injury to any person he shall (without prejudice to any proceedings by way of indictment or otherwise to which he may be subject) be guilty of an offence punishable on summary conviction and every person convicted of such offence or of any offence under section 50 of the Tramways Act 1870 with respect to any of the tramways shall be liable to a penalty not exceeding twenty pounds.

Penalty for
malicious
damage.

60.—(1) The corporation may from time to time make regulations with respect to those streets to be specified in the regulations in which tramways are constructed requiring the

Regulations
as to street
traffic.

A.D. 1904. — drivers of slow-moving vehicles to keep their vehicles to a particular portion of the street.

(2) All regulations under this section shall be subject to the approval of the Secretary of State.

(3) Any person who shall contravene any such regulation after warning given by word or signal by a police constable stationed in the street to direct the traffic shall be liable to a penalty not exceeding forty shillings.

Consents of
local or road
authority.

61. Where the consent or approval of any local or road authority is by this Act required before the exercise of any powers by the Company such consent or approval shall not be unreasonably withheld and if any difference arises as to whether any consent or approval is unreasonably withheld that difference shall be referred to an arbitrator to be appointed by the Board of Trade.

Orders &c.
of Board of
Trade.

62. All orders regulations and byelaws made by the Board of Trade under the authority of this Act shall be signed by a secretary or an assistant secretary of the Board.

Authentica-
tion and
service of
notices.

63.—(1) Where any notice under this Act requires authentication by the Company the signature of the secretary or other duly authorised officer of the Company shall be sufficient authentication.

(2) Notices and other documents required or authorised to be served under this Act may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served Provided that in the case of any company any such notice or document shall be delivered or sent by post addressed to the secretary of the Company at their registered office or at their principal office or place of business.

Recovery of
penalties.

64. Any penalty under this Act or under any byelaws or regulations made under this Act may be recovered in manner provided by the Summary Jurisdiction Acts.

Copy of Act
to be regis-
tered.

65.—(1) The Company shall deliver to the Registrar of Joint Stock Companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly and wilfully authorises such default shall incur the like penalty.

(2) There shall be paid to the Registrar by the Company on such copy being registered the like fee as is for the time being

payable under the Companies Act 1862 on registration of any A.D. 1904.
document other than a memorandum of association.

66. Nothing in this Act contained shall exempt the Company or the tramways from the provisions of any general Act relating to tramways passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum fares rates or charges authorised by this Act.

Provision as
to general
Tramway
Acts.

67. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

Costs of Act.

A.D. 1904.

SCHEDULES referred to in the foregoing Act.THE FIRST SCHEDULE.

RATES FOR ANIMALS AND GOODS.

<i>Animals.</i>					Per Mile.	
					s.	d.
For every horse mule or other beast of draught or burden	-	-	-	-	0	4
For every ox cow bull or head of cattle	-	-	-	-	0	3
For every calf pig sheep or small animal	-	-	-	-	0	1½

Goods.

For all coals coke culm charcoal cannel limestone chalk lime salt sand fireclay cinders dung compost and all sorts of manure and all undressed materials for the repair of public roads or highways	per ton	0	2
For all iron ironstone iron ore pig iron bar iron rod iron sheet iron hoop iron plates of iron slabs billets and rolled iron bricks slag and stone stones for building pitching and paving tiles slates and clay (except fireclay) and for wrought-iron not otherwise specially classed herein and for heavy iron castings including railway chairs	per ton	0	2½
For all sugar grain corn flour hides dyewoods earthenware timber staves deals and metals (except iron) nails anvils vices and chains and for light iron castings	per ton	0	3
For cotton wools drugs manufactured goods and all other wares merchandise fish articles matters or things not otherwise specially classed herein	per ton	0	4
For every carriage of whatever description	-	1	0

Parcels.

		Any Distance.	
		s.	d.
For any parcel not exceeding 7 lbs. in weight	-	0	3
For any parcel exceeding 7 lbs. and not exceeding 14 lbs. in weight	-	0	5
For any parcel exceeding 14 lbs. and not exceeding 28 lbs. in weight	-	0	7
For any parcel exceeding 28 lbs. and not exceeding 56 lbs. in weight	-	0	9
For any parcel exceeding 56 lbs. such sum as the Company may think fit:			

Provided always that articles sent in large aggregate quantities although made up in separate parcels such as bags of sugar coffee meal and the like shall not be deemed small parcels but that term shall apply only to single parcels in separate packages.

For the Carriage of Single Articles of Great Weight.

Per Mile.
s. d.

A.D. 1904.

For the carriage of any iron boiler cylinder or single piece of machinery or single piece of timber or stone or other single article the weight of which including the carriage shall exceed four tons but shall not exceed eight tons such sum as the Company may think fit not exceeding - - - - - per ton 2 0

For the carriage of any single piece of timber stone machinery or other single article the weight of which with the carriage shall exceed eight tons such sum as the Company may think fit.

Regulations as to Rates.

For articles or animals conveyed on the tramways for a less distance than two miles the Company may demand rates and charges as for two miles. A fraction of a mile beyond an integral number of miles shall be deemed a mile.

For a fraction of a ton the Company may demand rates according to the number of quarters of a ton in such fraction and if there be a fraction of a quarter of a ton such fraction shall be deemed a quarter of a ton.

With respect to all articles except stone and timber the weight shall be determined according to Imperial avoirdupois weight.

With respect to stone and timber fourteen cubic feet of stone forty cubic feet of oak mahogany teak beech or ash and fifty cubic feet of any other timber shall be deemed one ton weight and so in proportion for any smaller quantity.

In addition to the foregoing rates the Company may demand such charges as are reasonable for loading and unloading animals and goods and if any difference shall arise as to the reasonableness of any such charge the matter in difference shall be settled by the Board of Trade.

THE SECOND SCHEDULE.

PREMISES OF WHICH PARTS ONLY ARE REQUIRED.

Borough.	Numbers on Deposited Plans.
Borough of Torquay -	3 66 67 80 82 83 84 85 86 87 88 89 90 91 92 93 96 101 108 109 110 111 112.

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